

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 21, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons on which the complaint is based are as follows:

The complainant states that her photos are being used on two websites to advertise sexual services of third parties, linked to the telephone line ***PHONE.1. According to her, she fears a negative impact on her reputation and emotional well-being, and therefore requests that any additional damage to her image be minimized.

Relevant documentation provided by the complainant:

- Screenshot with a photograph of the complainant published on the portal ***PORTAL.1.
- Screenshot with the text of the advertisement published on the website ***PORTAL.2.
- Screenshot of the advertisement on the portal es.eroticos.com containing text and photographs of the complainant.
- Screenshot with more photographs of the complainant published on the portal ***PORTAL.3.

SECOND: On August 22, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

After analyzing the input data provided by the complainant, actions were initiated to detect possible contact routes with the responsible parties of the websites where the reported content was published, in order to launch various measures requesting the removal of this content.

First, the website ***PORTAL.1 was analyzed, detecting that in its privacy policy it refers to EROPUBLISH LLC as the service provider and responsible party of the website, with the following associated data:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

2/6

EROPUBLISH LLC

ZIP:XXXX

Delaware City, United States

Email: ***EMAIL.1

On the other hand, in the privacy policy of the portal ***PORTAL.2, the following service provider is identified as responsible for the website:

Majestic Soluções PT, LDA, ZFM

***ADDRESS.1

VAT: PT XXXXX

Email: ***EMAIL.2

On August 23, 2023, an email was sent to the two addresses identified in the privacy policies of both portals (***EMAIL.2 and ***EMAIL.1), informing them of the received complaint and requesting the removal of the reported content.

On the same date, August 23, 2023, a response email was received from the address ***EMAIL.1 with the following content:

(...).

After receiving the response, it was verified that as of August 23, 2023, the content had been removed from the website ***PORTAL.1.

No response was received from the provider loquosex.com to the email sent; however, it was verified that as of August 24, 2023, the reported content had also been removed from the website.

On August 24, 2023, a request for information was made to the responsible party of the website ***PORTAL.1, requesting the identifying data and IP address from which the reported content was published. In parallel, an email was also sent to the address ***EMAIL.1 informing them of the request and the information sought.

On August 24, 2023, a response was received to the previous email, providing an attached file with the data associated with the user account responsible for the publication of the reported content.

The data of the user account responsible for the publication of the content on the website erotikos.com are as follows:

(...).

GeolIP: Spain, Valencia. Deployment of Avanza Communication Networks. ASN XXXXXX.

Date of content registration: January 17, 2023, at 04:05:42.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

The numbering and telecommunications operators register of the CNMC is consulted, resulting in the finding that the mobile number ***TELÉFONO.1 corresponds to the current operator XFERA MÓVILES, S.A. On August 24, 2023, an information request is made to this communications service provider, requesting the identifying data associated with this line.

On the same date, August 24, 2023, an information request is made to the communications service provider AVANZA NETWORK TELECOM, S.L., requesting the identifying data associated with the holder of the IP ***IP.1 at the date and time when, according to records, the reported content was published.

On August 31, 2023, a response is received from AVANZA NETWORK TELECOM SL indicating the following:

“The IP ***IP.1 is a shared IP with multiple clients, commonly known as CG-NAT, so it is not possible to directly relate it to a single holder exclusively. A list of 15 clients who shared the IP under investigation has been obtained, and their identification is provided in Excel format.”

On September 6, 2023, a response is received from XFERA MÓVILES SA providing the following information:

(...).

This information is cross-checked with the list of 15 users provided by AVANZA NETWORK, confirming that none of the 15 matches the user provided by XFERA.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

C/ Jorge Juan, 6

www.aepd.es

Legitimacy for processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines “processing” as: “any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction.”

The processing of images that identify or make a person identifiable constitutes processing of personal data and, therefore, the person performing it must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and images that can be viewed without any limitation who must demonstrate that they have that consent.

For this processing to be carried out lawfully, it must comply with the provisions established in Article 6.1 of the GDPR, which states:

“1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) shall not apply to processing carried out by public authorities in the performance of their tasks.”

Conditions for consent

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Regarding the conditions for consent, Article 7 of the GDPR states:

“1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration that constitutes a violation of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to

give it.

4. In assessing whether consent has been freely given, account shall be taken, to the greatest extent possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

IV

Conclusion

In order to identify the person or persons who were processing the data of the complainant included in advertisements for sexual services with their photo, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before the adoption of the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing that involves mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed a duration of twelve months from the date of the admission decision or from the date of the decision to initiate it when the Spanish Data Protection Agency acts on its own initiative or as a consequence of the communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

After conducting the investigations mentioned in the Facts, the following has been concluded:

The removal of the reported content has been achieved.

It has been confirmed that the mobile line ***PHONE1 was linked to a Romanian citizen at the time of the publication of the reported content:

It has been confirmed that the IP address ***IP.1 was shared by 15 different users at the date and time of the publication of the reported content, so it cannot be associated with a specific natural person.

The person responsible for the publication could not be identified.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images contained in the video, in accordance with what has been indicated, by the Director of the Spanish Data Protection Agency, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided for in Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Data Protection Agency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es